



CHAPTER 40

An Act to make provision for the thermal insulation of industrial buildings ; and for purposes connected therewith. [17th July, 1957.]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) The Minister of Power (in this Act referred to as “ the Minister ”) may by regulations prescribe, as respects industrial buildings, a standard of insulation thereof against loss of heat therefrom. Standard of thermal insulation of industrial buildings.

(2) The standard prescribed by regulations under this section is in this Act referred to as “ the prescribed standard ”.

2.—(1) Where there are deposited with a local authority plans of a proposed industrial building the local authority shall (subject to the provisions of any regulations made under the next following section) pass the plans for the purposes of this Act unless they show that the building will not conform to the prescribed standard, and, if the plans show that the building will not so conform, they shall reject them for those purposes. Passing or rejection of plans of industrial buildings.

(2) The authority shall, within the relevant period from the deposit of the plans, give notice to the person by whom or on whose behalf they were deposited whether or not they are passed as aforesaid.

(3) In this section the expression “ relevant period ” means one month:

Provided that where, in the case of a local authority outside the administrative county of London whose meetings are not

normally held more frequently than once a month, plans are deposited less than three clear days before a meeting of that authority, the said expression means five weeks.

Power to make regulations for restricting use of certain materials.

3.—(1) The Minister may by regulations direct that a local authority shall reject for the purposes of this Act plans of a proposed industrial building deposited with them if the plans show that conformity, in the case of that building, to the prescribed standard will depend (wholly or to a substantial extent) upon the use, in the construction thereof, of materials of a kind specified in the regulations which do not conform to such standard of resistance to the spread of flame as may be specified or described in the regulations, unless the plans also show that the materials will be used in such a way as not to enhance the risk of fire's breaking out or spreading in the building.

(2) Materials of a kind specified in regulations under this section which do not conform to the standard specified or described in the regulations are in this Act referred to as "restricted materials".

Power to require removal or alteration of a building not conforming to prescribed standard or conforming thereto in wrong way.

4.—(1) If an industrial building is erected which does not conform to the prescribed standard or if its conformity thereto is dependent (wholly or to a substantial extent) upon the use, in the construction thereof, of restricted materials otherwise than in such a way as not to enhance the risk of fire's breaking out or spreading therein, the local authority may by notice require the owner either to pull down or remove it, or, if he so elects, to make such alterations therein as may be necessary to make it conform to the prescribed standard either without dependence, either wholly or to a substantial extent, upon the use, in the construction thereof, of restricted materials or by using them, in the construction thereof, in such a way as not to enhance the risk of fire's breaking out or spreading therein.

(2) If a person to whom a notice has been given under the foregoing subsection fails to comply with the notice before the expiration of twenty-eight days or such longer period as a magistrates' court may, on his application, allow, the local authority may pull down or remove the building in question or effect such alterations therein as they deem necessary and may recover from him, as a simple contract debt, in any court of competent jurisdiction, the expenses reasonably incurred by them in so doing.

(3) No such notice as is mentioned in subsection (1) of this section shall be given after the expiration of twelve months from the date of the completion of the building in question and, in any case where plans were deposited, it shall not be open to the authority to give such a notice if either the plans were passed for

the purposes of this Act or notice of their rejection was not given within the relevant period from the deposit thereof and if the building has been erected in accordance with the plans.

5. If—

- (a) any question arises between a local authority and a person who proposes to erect an industrial building—

Power to refer questions arising under this Act to the Minister.

(i) whether the building will conform to the prescribed standard; or

(ii) whether conformity to that standard will, in the case of that building, depend (wholly or to a substantial extent) on the use, in the construction thereof, of restricted materials; or

(iii) whether the way in which restricted materials are proposed to be used in the construction of the building is such as not to enhance the risk of fire's breaking out or spreading therein; or

- (b) any question arises between a local authority and a person who has erected an industrial building, whether the building has been erected in accordance with the plans as passed by the authority;

the question may, on an application made by him, be referred to the Minister for determination and the Minister's decision shall be final:

Provided that the Minister may, at any stage of the proceedings on the reference and shall, if so directed by the High Court, state in the form of a special case for the opinion of the High Court, any question of law arising in those proceedings.

6. Subject to the provisions of the next following section and of any regulations thereunder, sections two to five of this Act shall apply to an extension to an industrial building as they apply to such a building, but shall not apply to a building or extension the erection of which is begun before the first day of January, nineteen hundred and fifty-nine, or such earlier day as the Minister may by order (made by statutory instrument) appoint. Scope of ss. 2 to 5.

7. The Minister may by regulations exempt from the provisions of sections two to five of this Act buildings or extensions of such classes as may be specified in the regulations, and a local authority may, with the consent of the Minister, exempt from those provisions a particular building or extension if they think it expedient in all the circumstances so to do. Power of Minister and local authority to grant exemptions.

8.—(1) The following provisions of the Public Health Act, 1936, shall apply for the purposes of this Act, that is to say:— Application of provisions of Public Health Act, 1936, and Factories Act, 1937.
sections two hundred and eighty-three to two hundred and eighty-five (form, authentication and service of notices, &c.);

sections two hundred and eighty-seven and two hundred and eighty-eight (powers of entry, and penalty for obstruction);

section two hundred and eighty-nine (power to require occupier of premises to permit works to be executed by owner); and

sections three hundred to three hundred and two (applications to courts of summary jurisdiction and appeals to quarter sessions);

and accordingly any reference in any of those provisions to that Act shall be construed as including a reference to this Act but, in the application for those purposes of subsection (2) of the said section two hundred and eighty-three, "the Minister" shall mean the Minister of Power.

(2) Section one hundred and twenty-three of the Factories Act, 1937 (which relates to the powers of factory inspectors) shall have effect as if references therein to that Act included references to this Act.

Regulations.

9. Any power conferred on the Minister by this Act to make regulations shall be exercisable by statutory instrument which shall be subject to annulment in pursuance of a resolution of either House of Parliament.

Interpretation.

10. In this Act, except so far as the context otherwise requires,—
"erect" includes re-erect and "erected" and "erection" shall be construed accordingly;

"industrial building" means a building which is, or forms part of, a factory within the meaning of the Factories Acts, 1937 and 1948;

"local authority" means, as respects England and Wales (exclusive of the administrative county of London), the council of a borough or urban or rural district and, as respects the said county, means the London County Council;

"owner" has the same meaning as in the Public Health Act, 1936;

"plans" includes specifications;

"the prescribed standard" has the meaning assigned to it by subsection (2) of section one of this Act;

"restricted materials" has the meaning assigned to it by subsection (2) of section three of this Act.

Expenses.

11. Any increase attributable to this Act in the sums which under Part I of the Local Government Act, 1948, or under the Local Government (Financial Provisions) (Scotland) Act, 1954, as amended by the Valuation and Rating (Scotland) Act, 1956, are payable out of moneys provided by Parliament shall be defrayed out of moneys so provided.

12.—(1) The provisions of this section shall have effect for the Application of this Act to Scotland.

(2) The local authority for the purposes of this Act shall be in a burgh the town council, and in the landward area of a county the county council.

(3) For section two there shall be substituted the following section:—

“ 2. Where there are deposited with a dean of guild court or a local authority plans of a proposed industrial building, the dean of guild court shall not grant warrant for the erection of the building or, as the case may be, the local authority shall not approve the plans unless they show that the building will conform to the prescribed standard ”.

(4) In subsection (1) of section three for the words “ direct that a local authority shall reject for the purposes of this Act ” there shall be substituted the words “ direct that a dean of guild court shall not grant warrant for the erection of a proposed industrial building and that a local authority shall not approve ”.

(5) In section four for the reference to a magistrates’ court there shall be substituted a reference to the sheriff, and for subsection (3) there shall be substituted the following subsection:—

“ (3) It shall not be open to a local authority to give such a notice as is mentioned in subsection (1) of this section if warrant has been granted by the dean of guild court for the erection of the building or, as the case may be, the plans of the building were approved by the local authority and if the building has been erected in accordance with the warrant or the plans.”

(6) In section five for references to the High Court there shall be substituted references to the Court of Session, and for the words “ state in the form of a special case for the opinion of the High Court any question of law ” there shall be substituted the words “ state a case for the opinion of the Court of Session on any question of law ”.

(7) In section seven, the references to a local authority shall be construed as including references to a dean of guild court.

(8) For subsection (1) of section eight, there shall be substituted the following subsection:—

“ (1) The following enactments shall apply for the purposes of this Act, that is to say—

sections three hundred and forty-seven, three hundred and forty-nine and three hundred and fifty of the Local Government (Scotland) Act, 1947;

sections one hundred and fifty-nine and one hundred and sixty of the Housing (Scotland) Act, 1950, so far as relating to the power of a person authorised by a local authority to enter any premises or building for the purposes specified in paragraph (c) of the said section one hundred and fifty-nine; and

section one hundred and sixty-one of the said Act of 1950, subject however to the modification that in subsection (1) the words 'Part II of' shall be omitted;

and accordingly any reference in any of these enactments to any of the Acts aforesaid shall be construed as including a reference to this Act ”.

(9) In section ten for the definition of “ owner ” there shall be substituted the following definition:—

“ ‘ owner ’ has the like meaning as in the Public Health (Scotland) Act, 1897 ”.

Short title
and extent.

13.—(1) This Act may be cited as the Thermal Insulation (Industrial Buildings) Act, 1957.

(2) This Act shall not extend to Northern Ireland.

Table of Statutes referred to in this Act

Short title	Session and chapter
Public Health (Scotland) Act, 1897	60 & 61 Vict. c. 38.
Public Health Act, 1936	26 Geo. 5. & 1 Edw. 8. c. 49.
Factories Act, 1937... ..	1 Edw. 8. & 1 Geo. 6. c. 67.
Local Government (Scotland) Act, 1947... ..	10 & 11 Geo. 6. c. 43.
Local Government Act, 1948	11 & 12 Geo. 6. c. 26.
Housing (Scotland) Act, 1950	14 Geo. 6. c. 34.
Local Government (Financial Provisions) (Scotland) Act, 1954	2 & 3 Eliz. 2. c. 13.
Valuation and Rating (Scotland) Act, 1956	4 & 5 Eliz. 2. c. 60.

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